

23STCV31457 23STCV31457

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C08%2F18%2F2026

Source SHA-256: ebf7510b677e8b064f0d57917001d1682655645823599a48f7194ff3c202966a

Case Number: 23STCV31457 Hearing Date: August 18, 2026 Dept: F46

Dept. F-46

Hearing Date: August 18, 2026

Case Number: 23STCV31457

DEFENDANT MARIPOSA LANDSCAPES, INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Motion filed on September 10, 2025.

MOVING PARTY: Defendant Mariposa Landscapes, Inc.

RESPONDING PARTY: Plaintiff Brian Grant Wood

NOTICE: OK.

RELIEF REQUESTED: Summary judgment on Plaintiff's Complaint or, alternatively, summary adjudication of the second cause of action for general negligence.

RULING: Denied.

BACKGROUND

Plaintiff Brian Grant Wood (Plaintiff) filed the operative Complaint on December 26, 2023. The Complaint asserts causes of action for dangerous condition of public property and general negligence. The second cause of action alleges failures to provide protection and warnings and to abate the alleged dangerous condition of a fixture through warnings, repair, or maintenance.

On September 10, 2025, Defendant Mariposa Landscapes, Inc. (Mariposa) filed this motion for summary judgment or, alternatively, summary adjudication, together with a separate statement, declarations, and exhibits. Mariposa seeks summary adjudication of the second cause of action based principally on the absence of duty and causation.

On July 29, 2026, Plaintiff filed an opposition, a responsive separate statement with additional material facts, objections to Mariposa's separate statement, and a compendium of evidence.

On August 6, 2026, Mariposa filed a reply, evidentiary objections, and a response to Plaintiff's objections.

PLAINTIFF'S OBJECTIONS TO MARIPOSA'S SEPARATE STATEMENT

Plaintiff's objections to Mariposa's separate statement are overruled. Mariposa separately identifies the general negligence cause of action for purposes of its alternative request for summary adjudication, and the challenged presentation does not prevent an orderly determination of the motion. The Court considers the underlying evidence cited in the separate statement and does not treat counsel's characterization of that evidence as independent proof.

MARIPOSA'S EVIDENTIARY OBJECTIONS

Overruled: 1 through 8.

LEGAL STANDARD In reviewing a motion for summary judgment, courts apply a three-step analysis: identify the issues framed by the pleadings, determine whether the moving party has negated the opponent's claims, and determine whether the opposition has demonstrated the existence of a triable, material factual issue. (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) A defendant moving for summary judgment has met its burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., S 437c, subd. (p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*)

DISCUSSION

On August 6, 2023, Plaintiff was crossing Vermont Avenue between Martin Luther King Jr. Boulevard and Exposition Boulevard when he entered a median containing metal sculptures shaped as Bird-of-Paradise plants. Plaintiff testified that his thigh brushed one of the sculptures and that he sustained a laceration. Plaintiff cannot identify the particular median or sculpture involved. (UMF 1-4.) Mariposa performed landscape maintenance at the Vermont Avenue medians pursuant to contracts with the City of Los Angeles Urban Forestry Division from 2017 through January 2024. (UMF 5-6.)

Mariposa moves for judgment on the second cause of action for general negligence on the grounds that it owed Plaintiff no duty concerning the sculptures and that no act or omission by Mariposa was a substantial factor in causing Plaintiff's injury.

Duty

The elements of negligence are duty, breach, causation, and damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 477.) The existence and scope of duty are questions of law. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 57-58.) A person who has not created a peril generally has no duty to take affirmative action to protect another absent a relationship giving rise to such a duty. (*Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1202-1204.) A special relationship may arise from a contractual duty. Any resulting duty is limited to the undertaking and extends to the contracting parties and persons intended to be benefited by its performance. (*Id.* at pp. 1203-1205.) Where a contract creates a duty of

care toward an intended beneficiary and negligent nonperformance causes physical injury, the claim may sound in tort. (Eads v. Marks (1952) 39 Cal.2d 807, 811-812.)

Here, Mariposa does not meet its initial burden on duty. Mariposa presents evidence that it did not own, design, or install the sculptures. (UMF 19-21.) Mariposa also presents evidence that it did not agree to inspect, maintain, or repair the sculptures and was not authorized to alter them or install protective devices. (UMF 22-25; Medina Decl. ¶¶ 9-10.) That showing addresses Mariposa's responsibility to inspect, repair, maintain, or alter the sculptures themselves. It does not resolve the scope of the separate hazard-reporting undertaking.

Read as a whole, the "Special Specifications for Landscape Maintenance of Median Islands at Specific Locations" govern landscape maintenance. (Medina Decl., Ex. 4 at pp. 4-1 to 4-16.) The Work section includes status reports among Mariposa's assigned work. (Id. at p. 4-2.) Under Groundcover Maintenance, the specifications state that during biweekly service "each location will be inspected for public health, safety and welfare hazards." (Id. at p. 4-7.) Under Hazard Reports, the specifications require Mariposa to furnish written hazard reports and to "report any hazard within 24 hours." (Id. at p. 4-12.) The specifications do not define "hazard" or expressly restrict the reporting requirement to vegetation, irrigation, or conditions Mariposa was authorized to correct. (Id. at pp. 4-1 to 4-16.)

Miguel Medina, Mariposa's Maintenance Account Manager assigned to the contract from June 2023 through January 2024, states that reportable public-safety hazards typically included unusual or emergent conditions such as broken or displaced fixtures. (Medina Decl. ¶¶ 4, 6.) Medina further states that reporting hazards was his responsibility as account manager. (Id. ¶ 11.)

Mariposa's moving evidence therefore does not establish that an observed hazard involving a damaged fixture necessarily fell outside the reporting undertaking. The express reference to public health, safety, and welfare also prevents Mariposa from establishing that persons using the serviced locations were outside the class intended to benefit from those provisions.

Seo does not compel a different conclusion. The repairer in Seo was retained to perform specific repairs and had not contracted to inspect or maintain the gate. (Seo, supra, 97 Cal.App.4th at pp. 1204-1205.) The Court therefore declined to impose an additional duty to discover and warn of a design defect unrelated to the repairs undertaken. (Id. at pp. 1205-1206.) The Special Specifications here expressly require inspection of each serviced location for public health, safety, and welfare hazards and separately require hazard reporting. (Medina Decl., Ex. 4 at pp. 4-7, 4-12.) Those provisions prevent Mariposa from establishing on its moving showing that an observed hazard involving a damaged fixture necessarily fell outside the reporting obligation.

Even if Mariposa's showing were sufficient to shift the burden, Plaintiff raises a triable issue. Medina testified that, while working at the medians, he was supposed to look for safety concerns and that looking out for public-safety concerns was part of his job if the condition was within Mariposa's working area. (Beecher Decl., Ex. 6, Medina Depo. at 61:10-17.) Medina testified that the Hazard Report provision concerned, in his understanding, "anything that is a safety issue or safety hazard to the public or to anybody." (Id. at 75:23-76:2.) He further testified that a safety concern to Mariposa or anyone in the public was something Mariposa was supposed to report, including directly to the City. (Id. at 76:3-10.) When asked specifically about a sculpture that was sharp and capable of cutting someone, Medina testified that if it were a danger to the public, it would have been reported to the City because it was a safety concern. (Id. at 77:6-22.)

The written provisions are reasonably susceptible to that limited interpretation, so Medina's testimony may be considered for that purpose. (ASP Properties Group, L.P. v. Fard, Inc. (2005) 133 Cal.App.4th 1257, 1266-1268.) Mariposa has not established that it owed no duty as a matter of law.

Causation

A negligence plaintiff must establish that the defendant's conduct was a substantial factor in causing the injury. The evidence must afford a reasonable basis to conclude that it is more likely than not that the defendant's conduct was a cause in fact of

the result. A mere possibility of causation is insufficient. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205-1206.) A failure to warn is not causal if the same or similar harm would have occurred even with the warning. (*Visueta v. General Motors Corp.* (1994) 234 Cal.App.3d 1609, 1617.)

Here, Mariposa does not meet its initial burden on causation. Mariposa presents evidence that it lacked authority to alter the sculptures or install signs or barriers. (UMF 25.) Mariposa also presents evidence that the City approved the sculptures in 2001 and inspected the locations in connection with Mariposa's landscape work. (UMF 11-14, 31.) The City had no record of a prior injury involving the sculptures. (UMF 32.) This showing establishes that Mariposa could not itself remedy the condition and that the City knew the sculptures existed. It does not establish that notifying the City of the alleged cutting condition would have made no difference.

Mariposa's moving evidence states that a report to the Urban Forestry Division would have been transferred to another City department for investigation. (UMF 30.) The uncertainty as to which department ultimately would have handled the matter does not establish that no investigation or responsive action would have occurred. The City's knowledge that the sculptures existed likewise does not establish that it knew of the particular cutting condition Plaintiff contends should have been reported.

Even if Mariposa's showing were sufficient to shift the burden, Plaintiff raises a triable issue. Hector Banuelos, the City's designated witness concerning the relevant Urban Forestry landscape-maintenance contracts, testified that it was important for Mariposa to notify the City of an irregularity, danger, or hazard so the City could investigate and respond. (Beecher Decl., Ex. 3, Banuelos Depo. at 74:3-12.) Banuelos further testified that once the City learned of a potential hazard, the receiving department would either handle the issue or forward it to another City department for an appropriate response. (Id. at 91:2-14.)

This evidence permits a reasonable inference that notice of an identified public-safety hazard would have initiated the City's investigation and response process. Mariposa urges the competing inference that the investigation would have produced no corrective action. Viewing the evidence in the light most favorable to Plaintiff, raises a triable issue as to whether the alleged omission was a substantial factor in causing the injury.

CONCLUSION

Mariposa's motion for summary judgment is denied. Mariposa's alternative motion for summary adjudication of the second cause of action for general negligence is denied.

Dept. F-46

Hearing Date: August 18, 2026

Case Number: 23STCV31457

DEFENDANT CITY OF LOS ANGELES' MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Motion filed on September 4, 2025.

MOVING PARTY: Defendant City of Los Angeles

RESPONDING PARTY: Plaintiff Brian Grant Wood

NOTICE: OK.

RELIEF REQUESTED: Defendant City of Los Angeles seeks summary judgment or, alternatively, summary adjudication of three issues: (1) immunity for failure to post warning signs under Government Code sections 830.4 and 830.8, (2) design immunity under Government Code section 830.6, and (3) no liability for a dangerous condition of public property under Government Code section 835.

RULING: Denied.

BACKGROUND

On December 26, 2023, Plaintiff Brian Grant Wood (Plaintiff) filed his Complaint. As relevant to Defendant City of Los Angeles (City), the Complaint alleges a cause of action for dangerous condition of public property. Plaintiff alleges the condition arose from the design, construction, installation, inspection, repair, maintenance, and later physical condition of the Bird-of-Paradise fixture in the center median of South Vermont Avenue. (Compl. ¶¶ 13-28.)

On September 4, 2025, the City filed this motion, a separate statement, a request for judicial notice, and a compendium of evidence containing the declarations of Mark Blanchette, Ph.D., Patrick C.M. Murphy, Jeffrey Hunt, Ph.D., P.E., Dale Williams, P.E., Winnie Lam, P.E., Brian Sam, and Charlynn Rawlins.

On July 29, 2026, Plaintiff filed an opposition, opposing separate statement, objections to the City's separate statement, and a compendium of evidence containing deposition testimony and the declaration of Vijay Gupta, Ph.D.

On August 7, 2026, the City filed a reply and objections to Plaintiff's evidence.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts apply a three-step

analysis: identify the issues framed by the pleadings, determine whether the moving party has negated the opponent's claims, and determine whether the opposition has demonstrated the existence of a triable, material factual issue. (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) A defendant moving for summary judgment has met its burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Ibid.)

REQUEST FOR JUDICIAL NOTICE

The City's request for judicial notice is denied. The Complaint is already part of the Court's record. Plaintiff's discovery responses and deposition testimony were submitted as evidence in support of the motion and do not require judicial notice.

PLAINTIFF'S OBJECTIONS TO THE CITY'S SEPARATE STATEMENT

Plaintiff's objections to the City's separate statement are overruled. The challenged items identify allegations in the Complaint or responses provided in discovery and do not prevent an orderly determination of the motion. The Court considers the underlying evidence cited in the separate statement and does not treat counsel's characterization of that evidence as independent proof.

CITY'S EVIDENTIARY OBJECTIONS

Overruled: 4, 5, 7, and the portions of 1, 2, 3, 6, and 8 not sustained below.

Sustained: 1 in part, for lack of foundation and substantial similarity, as to Gupta declaration paragraph 16 and Exhibits D and E; 2 in part, for improper legal conclusion and lack of foundation, as to the portion of Gupta declaration paragraph 21 addressing the City's responsibility and the foreseeability of midblock crossings; 3 in part, for lack of foundation and improper expert opinion, as to Gupta declaration paragraph 20; 6 in part, for lack of foundation and speculation, as to whether Vitaly Troyan's engineering

license had expired or his approval was invalid; 8 in part, for hearsay, as to the contents of the traffic collision report.

DISCUSSION

1. Issue No. 3: Dangerous Condition of Public Property

Government Code section 835 provides that a public entity is liable for injury caused by a dangerous condition of its property where the plaintiff establishes that the property was in a dangerous condition at the time of injury, the condition proximately caused the injury, the condition created a reasonably foreseeable risk of the kind of injury incurred, and either a public employee negligently or wrongfully created the condition or the public entity had actual or constructive notice of the condition in sufficient time to protect against it. (Gov. Code, § 835.)

A dangerous condition is a condition of property that creates a substantial, rather than minor, trivial, or insignificant, risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner. (Gov. Code, § 830, subd. (a).) The due-care inquiry is objective. Plaintiff need not establish that he personally exercised due care when injured. His conduct may bear on comparative fault, but it does not determine whether the property was in a dangerous condition. (*Lane v. City of Sacramento* (2010) 183 Cal.App.4th 1337, 1347-1348.) Whether a condition is dangerous ordinarily presents a question of fact and may be resolved as a matter of law only where reasonable minds can reach but one conclusion. (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347.)

Here, the public property at issue is the landscaped center median within South Vermont Avenue. The alleged dangerous condition is a laterally projecting metal sepal or edge on one of the Bird-of-Paradise sculptures that was positioned at approximately thigh height and had allegedly become irregular, hardened, deteriorated, or sharp enough to cause a laceration through incidental contact. (Compl. ¶¶ 12, 21, 26; Gupta Decl. ¶¶ 10-11, 17-19.)

Hector Banuelos (Banuelos), the City's person most knowledgeable concerning median maintenance, testified that the City controlled maintenance of the medians, approved the Class B permit before the sculptures could be installed, and controlled the area covered by the permit. (Banuelos

Depo., 31:4-10, 117:19-24, 122:19-23.) Although the City disputes ownership or control of the sculptures themselves, public property may be rendered dangerous by privately owned equipment installed within it. (Huffman v. City of Poway (2000) 84 Cal.App.4th 975, 988-990.) The City therefore does not eliminate the claim merely by disputing ownership or control of the sculpture.

A. City Meets Its Initial Burden

The City meets its initial burden to show that the alleged metal projection was visible, avoidable, free of a cutting defect, and incapable of producing Plaintiff's wound through the brushing contact he described.

Mark Blanchette, Ph.D. (Blanchette), a biomechanics and safety consultant retained by the City, inspected the installation in December 2024, May 2025, and July 2025. (Blanchette Decl. ¶¶ 2, 6.) Based on Plaintiff's route and description of a group of three or four sculptures, Blanchette identified a probable group of three. He examined all three because Plaintiff could not identify the individual sculpture involved. (Blanchette Decl. ¶¶ 6-8.)

Blanchette identified an orange horizontal sepal on each candidate sculpture as the probable contact surface. (Blanchette Decl. ¶ 8(g).) Each sepal tip measured approximately 13 millimeters wide. (Blanchette Decl. ¶ 9.) Blanchette repeatedly rubbed and brushed the back of his hand against each tip and found no burr, sharp point, sharp edge, or other defect capable of breaking skin through the contact Plaintiff described. (Blanchette Decl. ¶ 9.) He also applied paint to each candidate sepal and walked into it so that the sepal brushed his thigh. (Blanchette Decl. ¶ 10.) Each test produced a horizontal paint transfer, while Plaintiff's wound was vertically oriented. (Blanchette Decl. ¶¶ 10, 14.)

Blanchette observed open portions of the median through which a pedestrian could pass without contacting a sculpture. He opines that the sculptures were conspicuous because of their color, size, shape, material, and orientation. (Blanchette Decl. ¶¶ 8(e), 8(h), 15.) He states that he is unaware of any change to the candidate sculptures between Plaintiff's accident and his inspections. (Blanchette Decl. ¶ 11.)

Patrick C.M. Murphy (Murphy), a licensed landscape architect

retained by the City, reviewed photographs, measurements, construction details, Drawing No. D-31990, and the Class B permit. (Murphy Decl. ¶¶ 1-2, 5.) Murphy states that the photographs depict eased edges and no evident sharp edges. (Murphy Decl. ¶ 5(b).) He opines that the sculptures were designed without exposed sharp or pointed features and were painted bright colors for visibility. (Murphy Decl. ¶¶ 6-7.)

Jeffrey Hunt, Ph.D., P.E. (Hunt), a licensed civil engineer retained by the City, states that the nearest marked pedestrian crosswalks are approximately 700 feet south at Martin Luther King Jr. Boulevard and approximately 1,900 feet north at Exposition Boulevard. (Hunt Decl. ¶ 7.) Hunt opines that no additional traffic-control measure or warning was required at the subject location. (Hunt Decl. ¶¶ 13-19.)

If un rebutted, this evidence would establish that the identified contact surfaces were broad, eased, conspicuous, and free of a cutting defect. It would also establish that a person exercising due care could avoid the sculptures and that the brushing mechanism Plaintiff described could not have produced his wound. The evidence therefore would establish that the property did not create a substantial risk of the type of injury incurred when used with due care in a reasonably foreseeable manner. The City meets its initial burden as to dangerous condition and causation. The burden shifts to Plaintiff.

B. Plaintiff Raises Triable Issues as to Dangerous Condition and Causation

Plaintiff raises triable issues as to dangerous condition and causation.

Plaintiff testified that he was watching northbound and southbound traffic while crossing Vermont Avenue and brushed against a metal structure without realizing he was doing so. (Wood Depo., 28:7-15.) After taking several more steps, his leg began to lock, and he discovered a large wound. (Wood Depo., 28:15-18.) Plaintiff did not trip or fall into the sculpture and was walking rather than running. (Wood Depo., 30:8-11, 93:16-23.) Plaintiff could not identify the precise sculpture or the exact location where he crossed. (Wood Depo., 43:5-12.) That uncertainty weakens his ability to identify the exact injury-producing surface, but it does not eliminate his testimony that the onset of his injury immediately followed brushing contact

with one of the metal structures. The City likewise cannot identify the individual sculpture involved and therefore examined all three candidate surfaces. (Blanchette Decl. ¶¶ 6-8.)

Vijay Gupta, Ph.D. (Gupta), a mechanical engineer retained by Plaintiff to perform a biomechanical reconstruction and injury-mechanism analysis, inspected the site in October 2025. (Gupta Decl. ¶¶ 1-6, 10.) Gupta observed metal sepals approximately 13 millimeters wide with rigid, multilayer painted surfaces exhibiting small irregularities and hardened ridges. He also observed surfaces within the installation exhibiting bending, rusting, sharpened edges, deterioration, and deformation. (Gupta Decl. ¶¶ 10-11.)

Gupta did not identify which candidate sculpture displayed each observed condition or determine when each condition developed. Those limitations concern the weight of his opinion. They do not eliminate his personal observations of the candidate installation or his biomechanical opinion concerning the mechanism of injury.

Gupta disputes Blanchette's tactile hand test because the thigh contains softer and more compliant skin and subcutaneous tissue than the back of the hand. (Gupta Decl. ¶ 18.) Gupta opines that tangential contact between a moving thigh and a rigid metal sepal can exceed the shear stress necessary for epidermal rupture, particularly if paint edges or burrs are present. (Gupta Decl. ¶ 18.) He further explains that initial horizontal contact may be followed by reflexive hip and knee flexion, producing vertical movement between the leg and the stationary sepal and a vertically extended laceration. (Gupta Decl. ¶¶ 17, 19.)

Juan De La Torre (De La Torre), a supervisor employed by Mariposa Landscapes, Inc. (Mariposa), testified that beginning in approximately 2017 he warned workers to be careful around metal portions of the sculptures when vegetation obscured them. (De La Torre Depo., 40:7-25, 41:1-25, 42:6-25.) His concern involved workers contacting metal while removing weeds. (De La Torre Depo., 41:9-25, 43:1-21.) De La Torre acknowledged that contact with the metal could cause a cut, although no Mariposa worker suffered such an injury during the years Mariposa worked at the location. (De La Torre Depo., 44:1-17, 46:20-47:8.) His testimony does not establish that the sculptures generally were dangerously sharp. It does provide pre-incident evidence that a supervisor who regularly worked around the sculptures recognized a risk of contact injury under some circumstances.

The evidence presents a factual dispute concerning the physical condition of the projecting surfaces. The City's evidence describes broad, eased, visible surfaces incapable of causing a cut through brushing contact. Plaintiff's evidence describes rigid metal surfaces with irregularities and hardened ridges that could rupture softer thigh tissue during tangential contact. The visibility of the sculpture as a whole does not resolve whether the cutting character of a particular projection was apparent. Plaintiff's theory therefore concerns an alleged physical defect in a projection, not merely a failure to avoid a conspicuous stationary object.

The City's evidence concerning the availability of nearby crosswalks and open portions of the median also does not resolve whether the condition created a substantial risk to all foreseeable users exercising due care. City and contractor personnel regularly entered the medians to inspect and maintain the landscaping. (Arriola Depo., 42:23-43:4, 52:9-15; De La Torre Depo., 19:1-25.) A maintenance worker performing ordinary work around the vegetation is a foreseeable user of the median. De La Torre's testimony permits an inference that incidental contact with a projecting metal surface could present a laceration risk to such a user.

The evidence likewise conflicts on causation. Blanchette found no cutting defect and opines that horizontal brushing could not have produced Plaintiff's vertically oriented wound. (Blanchette Decl. ¶¶ 9-10, 14.) Plaintiff testified that contact immediately preceded the injury. Gupta explains how the physical differences between the thigh and hand and reflexive movement of the leg could produce the observed wound. (Wood Depo., 28:10-18; Gupta Decl. ¶¶ 17-19.)

Resolving whether a candidate surface contained an injurious irregularity and whether Blanchette's or Gupta's injury mechanism is more persuasive would require the Court to weigh competing evidence. Reasonable minds could differ as to whether the physical condition of a projecting metal surface created a substantial risk of laceration when the median was used with due care in a reasonably foreseeable manner and whether that condition caused Plaintiff's injury. Plaintiff raises triable issues as to dangerous condition and causation.

C. Notice

Constructive notice requires that the condition existed for a sufficient period and was of such an obvious nature that the public entity, exercising due care, should have discovered the condition and its dangerous character. (Gov. Code, § 835.2, subd. (b).) Duration and obviousness are separate threshold requirements. Evidence concerning the adequacy of an inspection system is relevant, but an inadequate inspection system does not by itself establish constructive notice. (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317-321.)

The City meets its initial burden. Brian Sam (Sam), Chief Investigator for the Office of the Los Angeles City Attorney, searched the City Claims Database for the ten years preceding Plaintiff's accident and found no other personal-injury or wrongful-death claim concerning the Bird-of-Paradise sculptures at or near the subject location. (Sam Decl. ¶¶ 1-6.) Winnie Lam, P.E. (Lam), a Senior Transportation Engineer with the Los Angeles Department of Transportation, searched applicable work-order, complaint, and service-request systems and found no relevant record concerning the artwork. (Lam Decl. ¶¶ 1, 3-5.) The City also submits expert evidence that later inspections of the three candidate surfaces disclosed no cutting defect. (Blanchette Decl. ¶¶ 9-11; Murphy Decl. ¶ 5(b).) If un rebutted, the evidence would establish that no longstanding or observable cutting defect existed. The burden shifts to Plaintiff.

Plaintiff presents circumstantial evidence bearing on constructive notice.

John Arriola (Arriola), the City employee who supervised landscape inspections of the Vermont Avenue medians, testified that City personnel inspected the medians approximately once every two weeks to verify the landscape contractor's work. (Arriola Depo., 42:23-43:4, 52:9-15, 53:1-19.) Evaluating the sculptures was not part of those inspections. (Arriola Depo., 173:3-11.) Arriola had never seen anyone maintain the sculptures and had never received a report that anyone was maintaining them. (Arriola Depo., 174:10-22.) He did not know of any City department responsible for maintaining or repairing them. (Arriola Depo., 175:5-22, 247:7-18.)

The landscaping contract contained a hazard-reporting provision. Arriola knew the provision existed but had never received a hazard report from Mariposa and knew of no City effort to enforce the requirement. (Arriola Depo., 87:9-25, 89:8-23, 94:9-14.) De La Torre had also recognized a potential contact and laceration risk from metal portions of the installation

before Plaintiff's accident. (De La Torre Depo., 40:7-25, 46:20-47:8.)

The evidence supports competing inferences concerning duration. Gupta's observations of rusting, hardened ridges, deterioration, and deformation concern conditions ordinarily capable of developing gradually rather than instantaneously. The absence of any known sculpture maintenance and De La Torre's pre-incident warnings beginning in approximately 2017 support an inference that at least some physical contact hazard existed before Plaintiff's accident. The City may reasonably argue that the conditions Gupta observed in October 2025 developed after the accident and were not tied to the actual contact surface. The competing inferences cannot be resolved without weighing the evidence.

The evidence also supports competing inferences concerning obviousness and discoverability. City personnel regularly entered the medians, but their inspections did not include the sculptures. If the injury-producing irregularity was visible upon inspection in the manner Gupta describes, a factfinder could conclude that a reasonably adequate inspection would have disclosed both the condition and its dangerous character. The absence of a sculpture inspection does not alone establish constructive notice. It is relevant when considered with the evidence of gradual deterioration, recurring City presence, the lack of any identified maintenance, and the pre-incident recognition of a contact risk.

The City's evidence supports the contrary inference. The City found no similar claim, work order, complaint, or service request. No Mariposa worker was injured. Blanchette and Murphy found no cutting defect during later inspections. Gupta inspected more than two years after the accident and did not identify the actual contact surface.

Because the record permits competing reasonable inferences as to whether the alleged condition existed for a sufficient period and was of such an observable nature that the City, exercising due care, should have discovered it and its dangerous character, constructive notice cannot be resolved as a matter of law. Plaintiff raises a triable issue of constructive notice.

D. Government Code Section 815.4

Government Code section 815.4 provides that a public entity

is liable for injury proximately caused by a tortious act or omission of an independent contractor of the public entity to the same extent the entity would be liable if it were a private person. Section 815.4 applies only to the tort of an independent contractor of the public entity. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1665-1669.)

The Complaint expressly alleges that the City is liable under section 815.4 for tortious acts or omissions of its contractors. (Compl. ¶¶ 18-20.) Plaintiff identifies Mariposa as the City's landscape-maintenance contractor and relies on Mariposa's alleged failure to report a public-safety hazard encountered while performing its median work.

Plaintiff's evidence shows that the Mariposa contract contained a hazard-reporting provision and that City and Mariposa witnesses understood that safety hazards encountered in the medians were to be reported to the City. Banuelos testified that contractors were expected to report irregularities, dangers, and hazards they encountered in the medians. (Banuelos Depo., 73:13-25, 74:3-20.) Miguel Medina testified that a safety hazard to the public was to be reported to the City. (Medina Depo., 75:23-76:10.) De La Torre testified that he did not report his contact concerns because he did not consider that his responsibility. (De La Torre Depo., 48:1-23, 50:18-51:25, 52:5-25.)

A duty to inspect, repair, or maintain the sculptures is distinct from an obligation to report a hazard encountered while performing contracted work. The City's motion does not address whether the alleged failure to report was within Mariposa's contractual undertaking, whether the omission was tortious and causative, or whether section 815.4 otherwise applies. The City therefore has not met its initial burden to negate that pleaded theory.

Issue No. 3 is denied.

2. Issue No. 1: Traffic-Control and Warning-Sign Immunity

Government Code sections 830.4 and 830.8 address different omissions. Section 830.4 provides that public property is not in a dangerous condition merely because the public entity failed to provide specified regulatory traffic-control signals, stop signs, yield signs, speed-restriction signs, or distinctive roadway markings. The statute applies when that omission

is the sole basis for liability. If the property is alleged to be dangerous for reasons other than or in addition to the absence of those controls or markings, section 830.4 does not bar liability. (*Washington v. City and County of San Francisco* (1990) 219 Cal.App.3d 1531, 1534-1536.)

Section 830.8 separately provides that a public entity is not liable for an injury caused by the failure to provide other traffic or warning signals, signs, markings, or devices described in the Vehicle Code. That protection does not apply where such a device was necessary to warn of a dangerous condition that endangered the safe movement of traffic and that would not have been reasonably apparent to, or anticipated by, a person exercising due care. (Gov. Code, § 830.8.)

Here, section 830.4 forecloses Plaintiff's theory only to the extent paragraph 24 of the Complaint alleges that the property was dangerous merely because it lacked one of the regulatory traffic controls or roadway markings identified in that statute. Section 830.4 does not foreclose Plaintiff's separate allegation that a projecting metal portion of the sculpture was itself unreasonably sharp, deformed, or deteriorated and rendered the median dangerous. The Complaint expressly alleges that the condition was dangerous for reasons other than the absence of traffic controls or markings. (Compl. ¶¶ 19-23, 26.)

As to section 830.8, the City makes a prima facie showing that the alleged condition was not concealed. Blanchette states that the sculptures and their leaves and sepals were conspicuous because of their colors, dimensions, shape, material, and orientation. He also states that the candidate sepal tips had no burr, sharp point, sharp edge, or other defect capable of breaking skin through the brushing contact Plaintiff described. (Blanchette Decl. ¶¶ 8(e), 9, 15.) If unrebutted, this evidence would establish that a person exercising due care would have perceived and avoided the alleged condition and that no warning was required.

Plaintiff raises a triable issue. Gupta states that the green and orange sculptures visually blend with the landscaping and would not necessarily appear metallic or hazardous to a pedestrian concentrating on surrounding traffic. (Gupta Decl. ¶ 20.) Gupta also observed hardened ridges, bending, rust, deterioration, deformation, and sharpened edges within the installation. (Gupta Decl. ¶¶ 10-11.) Plaintiff's evidence therefore concerns not merely the visibility of the sculptures as objects, but whether their alleged

cutting surfaces were reasonably apparent.

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does not compel a different result. There, the visible physical feature relied upon by the plaintiffs did not itself constitute a concealed danger. Here, Plaintiff offers evidence that the injury-producing quality of the visible object was a latent or irregular cutting surface. On this record, reasonable minds could differ as to whether that condition would have been reasonably apparent to, or anticipated by, a person exercising due care.

The City establishes the application of section 830.4 only to the limited theory based merely on the absence of the regulatory controls or roadway markings specified in that statute. The City does not establish section 830.8 immunity as a matter of law.

Issue No. 1 is denied.

3. Issue No. 2: Design Immunity

Government Code section 830.6 provides design immunity where a public entity establishes: (1) a causal relationship between the plan or design and the accident, (2) discretionary approval of the plan or design before construction, and (3) substantial evidence supporting the reasonableness of the plan or design. (Cornette v. Department of Transportation (2001) 26 Cal.4th 63, 66.) The first two elements may be resolved as matters of law only where the underlying facts are undisputed. The third element requires only substantial evidence of solid value that reasonably inspires confidence. (Grenier v. City of Irwindale (1997) 57 Cal.App.4th 931, 940-941.) Contrary expert testimony does not defeat the third element where substantial evidence supports the design's reasonableness. (Ibid.)

Design immunity is limited to an injury caused by the approved design. It does not immunize negligence independent of the design, including negligent maintenance. (Mozzetti v. City of Brisbane (1977) 67 Cal.App.3d 565, 575.) It also does not categorically preclude liability for failure to warn of a known danger resulting from an immunized design. (Tansavatdi v. City of Rancho Palos Verdes (2023) 14 Cal.5th 639, 647-648.)

Here, the City makes a prima facie showing of design immunity as to Plaintiff's original-design theory. Drawing No. D-31990 depicts

the construction and placement of the Bird-of-Paradise sculptures. Williams states that City Engineer Vitaly B. Troyan approved the drawing before construction and possessed discretionary authority to approve the design. The drawing also bears approvals from six City divisions and the Deputy City Engineer. (Williams Decl. ¶ 4.)

Murphy reviewed the plans, construction details, permit, photographs, and measurements. He states that the design used eased edges, avoided exposed sharp or pointed features, placed the sculptures away from expected pedestrian contact, and complied with prevailing design standards. (Murphy Decl. ¶¶ 5-10.) This constitutes substantial evidence supporting the reasonableness of the approved design.

The Complaint alleges in part that the design and placement of the sculptures created the injury-producing condition. (Compl. ¶¶ 21, 26.) Those allegations supply the required causal relationship for the original-design theory. (Fuller v. Department of Transportation (2001) 89 Cal.App.4th 1109, 1114.) The City therefore establishes the elements of design immunity as to a claim that Plaintiff was injured by the sculptures as originally designed and installed.

That showing does not establish immunity from Plaintiff's alternative theory. The City's own evidence describes an approved design with eased edges and no exposed sharp or pointed features. Plaintiff alleges and presents evidence that the injury-producing cutting surface instead developed after installation through bending, rust, deformation, deterioration, or deficient maintenance. The Complaint expressly alleges that weather, exposure, age, deficient inspection, and deficient maintenance caused the actual condition to cease conforming to the approved design.

If the injury-producing feature was a later-developed sharp or irregular edge that was not part of the approved design, the injury was not caused by the design feature for which immunity exists. That theory does not ask a jury to second-guess the reasonableness of the original design. It asks whether a separate physical condition developed after construction and caused Plaintiff's injury. Design immunity does not extend to such independent negligence. (Flournoy v. State of California (1969) 275 Cal.App.2d 806, 810-812.)

Plaintiff also alleges failure to protect and failure to

warn of the later condition. Design immunity does not categorically bar those theories. Whether Plaintiff can establish the elements of those theories, including dangerousness and notice, is addressed under Issue No. 3.

At most, the City establishes design immunity as to the original-design theory. It does not establish immunity from the later-condition, maintenance, or failure-to-warn theories. The noticed issue therefore does not completely dispose of the cause of action or establish the complete defense asserted by the City. Summary adjudication may not be used merely to remove one alternative theory from a cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Issue No. 2 is denied.

CONCLUSION

Defendant City of Los Angeles' motion for summary judgment is denied.

The City's alternative motion for summary adjudication of Issue Nos. 1, 2, and 3 is denied.